

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ELIJAH BARKSDALE,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer SEAN CARROLL SHIELD #10931 individually and in his/her official capacities; individually and in his/her official capacities; and NYPD Officers JOHN and JANE DOE 1 through 10, individually and in their official capacities (the names John and Jane Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates New York County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
March 31, 2016

Katherine E. Smith, Esq.
LAW OFFICE OF K.E. SMITH
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TO:
ZACHARY W. CARTER
Corporation Counsel of the City of New York
Attorney for Defendant THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer SEAN CARROLL, SHIELD # 10931, PSA 4, 9th Precinct - 130 Ave C., NY, NY 10009

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ELIJAH BARKSDALE,

Plaintiff,

-against-

THE CITY OF NEW YORK, Police Officer SEAN CARROLL, #10931; Individually and in his Official Capacity, and POLICE OFFICERS “JOHN DOE” #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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Plaintiff ELIJAH BARKSDALE, by his attorneys, LAW OFFICE OF KATHERINE E. SMITH, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff ELIJAH BARKSDALE, is an African American male and has been at all relevant times a resident of BRONX County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State

VERIFIED COMPLAINT

Jury Trial Demanded

Index No.

BASIS FOR VENUE:

CPLR § 504(3)

Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. At all times relevant defendants Police Officer SEAN CARROLL, Tax / Shield No. 10931; and NYPD Defendants John & Jane Doe 1 through 10 (“Doe Defendants”) were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield / tax numbers of defendants John & Jane Doe 1 through 10.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

STATEMENT OF FACTS

8. On or about December 7, 2015 at or around 9:15 p.m., PLAINTIFF was lawfully within the vicinity of 72 Columbia Street, New York, New York.

9. Several unidentified New York City Police Officers, including defendants CARROLL, and the DOE defendants, approached PLAINTIFF.

10. Defendants falsely claimed that they observed PLAINTIFF smoking what appeared to them to be a marijuana cigarette.

11. The officers used this as a false pretext to unlawfully search PLAINTIFF.

12. Defendants only recovered from claimant his cell phone and cash. The officers claim that these lawful items were evidence of illegal activity.

13. Moreover, the officers falsely claimed they recovered drugs from PLAINTIFF; however, PLAINTIFF possessed no contraband.

14. Notwithstanding the fact that defendants had no probable cause to believe that PLAINTIFF had committed any crimes or offenses, defendants placed PLAINTIFF into handcuffs and under arrest.

15. PLAINTIFF was subsequently transported to the police precinct.

16. At the precinct the officers, including defendant CARROLL falsely informed employees of the New York County District Attorney's Office ("DA's Office") that they had observed PLAINTIFF commit various crimes/offenses.

17. Neither CARROLL nor the DOE defendants observed PLAINTIFF violate any laws / ordinances.

18. The allegations made by Defendants to the DA's Office were false, and the defendants knew them to be false at the time the defendants made the allegations.

19. The defendants then forwarded these false allegations to the DA's Office in order to justify the unlawful arrest of PLAINTIFF and to persuade the DA's Office to commence and/or continue the criminal prosecution of PLAINTIFF.

20. The defendants knew and understood that the DA's Office was relying on the truthfulness of defendant's claims and statements in order to evaluate whether to commence a criminal prosecution against the PLAINTIFF. Defendants were aware that the DA's Office assumed that all of the factual statements, claims and allegations that defendants relayed to the DA's Office were truthful in all material respects.

21. From the precinct, PLAINTIFF was then transported to New York Central Booking, and was falsely imprisoned for approximately twenty-four hours before he was remanded to the custody of the Department of Correction.

22. PLAINTIFF was held for one (1) week after the grand jury refused to indict PLAINTIFF on all charges.

23. After attending all required court appearances over the course of one (1) year and three (3) months, the charges against PLAINTIFF were dismissed.

24. PLAINTIFF suffered damages as a result of defendants' actions. PLAINTIFF was deprived of liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, humiliation, and reputational damage.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
ASSAULT

25. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

26. Defendants' aforementioned actions placed plaintiff in apprehension of imminent harmful and offensive bodily contact.

27. As a result of defendants' conduct, PLAINTIFF has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
BATTERY

28. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

29. Defendant police officers touched PLAINTIFF in a harmful and offensive manner.

30. Defendant police officers did so without privilege or consent from PLAINTIFF.

31. As a result of defendants' conduct, plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

THIRD CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE ARREST

32. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

33. Defendant police officers arrested PLAINTIFF in the absence of probable cause and without a valid warrant.

34. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to an illegal, improper and false arrest by the defendants and caused to be falsely imprisoned, detained and confined. The aforesaid actions by the defendants constituted a deprivation of the plaintiff's rights.

FOURTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
FALSE IMPRISONMENT

35. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

36. As a result of the foregoing false imprisonment, PLAINTIFF's liberty was restricted for an extended period of time, PLAINTIFF was put in fear for PLAINTIFF's safety, was humiliated and subjected to handcuffing and other physical restraints.

37. PLAINTIFF was conscious of said confinement and did not consent to same.

38. The confinement of PLAINTIFF was without probable cause and was not otherwise privileged.

39. As a result of the aforementioned conduct, PLAINTIFF has suffered physical and mental injury, together with embarrassment, humiliation, shock, fright and loss of freedom.

FIFTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

40. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

41. The aforementioned conduct was extreme and outrageous, and exceeded all reasonable bounds of decency.

42. The aforementioned conduct was committed by defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

43. The aforementioned conduct was committed by defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

44. The aforementioned conduct was intentional and done for the sole purpose of causing severe emotional distress to plaintiff.

45. As a result of the aforementioned conduct, PLAINTIFF suffered severe emotional distress and physical and mental injury together with embarrassment, humiliation, shock, fright and loss of freedom.

SIXTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION

46. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

47. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

48. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

49. Due to the negligence of the defendants as set forth above, PLAINTIFF suffered physical and mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

SEVENTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS ABUSE OF PROCESS

50. PLAINTIFF repeats and re-alleges each and every allegation as if fully set forth herein.

51. The individual defendants issued legal process to place PLAINTIFF under arrest.

52. The Municipal Defendants arrested PLAINTIFF in order to obtain collateral objectives outside the legitimate ends of the legal process.

53. The Municipal Defendants acted with intent to do harm to PLAINTIFF without excuse or justification.

54. As a direct and proximate result of this unlawful conduct, PLAINTIFF sustained, *inter alia*, loss of liberty, loss of earnings, emotional distress, mental anguish, shock, fright, apprehension, embarrassment, humiliation, deprivation of constitutional rights, in addition to the damages hereinbefore alleged.

EIGHTH CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

55. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

56. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

57. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with resisting arrest, menacing and disorderly conduct. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

58. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

59. All charges were terminated in plaintiff's favor.

60. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

61. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FEDERAL CLAIMS
FIRST CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DEPRIVATION OF FEDERAL RIGHTS

62. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

63. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

64. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

65. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

66. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

67. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL

68. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

69. Defendants created false evidence against PLAINTIFF.

70. Defendants forwarded false evidence and false information to prosecutors in the Bronx County District Attorney's office and/or U.S. Attorney's Office.

71. Defendants misled the prosecutors by creating false evidence against PLAINTIFF and thereafter providing false testimony throughout the criminal proceedings.

72. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

73. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

THIRD CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
FALSE ARREST

74. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

75. As a result of the aforesaid conduct by defendants, PLAINTIFF was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

76. As a result of the foregoing, PLAINTIFF's liberty was restricted for an extended period of time, he was put in fear for her safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
UNLAWFUL SEARCH AND SEIZURE

77. PLAINTIFF repeats, reiterates, and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

78. As a result of the aforesaid conduct by defendants, PLAINTIFF's person and possessions were illegally and improperly seized and searched without consent, a valid warrant, probable cause, privilege or consent, in violation of his constitutional rights as set forth in the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

FIFTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MALICIOUS PROSECUTION

79. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

80. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.

81. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.

82. As a direct and proximate result of defendants' unlawful actions, plaintiffs have suffered, and will continue to suffer, damages, including physical, mental and emotional injury and pain, mental anguish, suffering, humiliation, embarrassment and loss of reputation.

SIXTH CLAIM FOR RELIEF ARISING UNDER 42 U.S.C. § 1983
MUNICIPAL LIABILITY

83. PLAINTIFF repeats, reiterates and realleges each and every allegation contained in the preceding paragraphs with the same force and effect as if fully set forth herein.

84. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

85. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. fabricating evidence in connection with search warrants in order to effectuate otherwise illegal searches and seizures, and,
- v. fabricating evidence in connection with search warrants in order to cover up police misconduct.

86. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference

to the safety, well-being and constitutional rights of the plaintiff.

87. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

88. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

89. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the PLAINTIFF's constitutional rights.

90. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

91. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, PLAINTIFF respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: New York, New York
March 30, 2016

_____/s/_____
Katherine E. Smith
233 Broadway, Ste. 1800
New York, New York 10279
Tel/ Fax: 347-470-3707
ksmith@legalsmithny.com
Attorney for Plaintiff

ATTORNEY'S VERIFICATION

KATHERINE E. SMITH, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That he is a member of THE LAW OFFICE OF KATHERINE E. SMITH the attorneys for plaintiff ELIJAH BARKSDALE in the within entitled action

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, he believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
 March 30, 2016

_____/S/_____
Katherine E. Smith